

Court No. - 29

Case :- WRIT - C No. - 16377 of 2019

Petitioner :- Saiyad Ali Akhtar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ajay Kumar Mishra

Counsel for Respondent :- C.S.C.

Hon'ble Pankaj Mithal,J.

Hon'ble Prakash Padia,J.

Put up on Thursday ie. 16.5.2019 as fresh before the appropriate Bench.

In the meantime, learned counsel for the petitioner is directed to correct and properly describe the respondents and serve a copy of this petition to the counsel representing respondent no. 3.

Order Date :- 13.5.2019

SKS

Court No. - 35

Case :- WRIT - C No. - 16377 of 2019

Petitioner :- Saiyad Ali Akhtar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ajay Kumar Mishra

Counsel for Respondent :- C.S.C.

Hon'ble Bharati Sapru,J.

Hon'ble Vivek Varma,J.

Heard Shri Ajay Kumar Mishra, learned counsel for the petitioner, Shri Chandan Agarwal, learned Counsel for the department and Shri Nimai Dass, learned Additional Chief Standing Counsel assisted by Shri B.P.S. Kachhawah, learned standing counsel for the respondents-State.

The petitioner is not disputing the amount as demanded by the department and he is ready and willing to deposit the amount in easy instalments.

Shri Chandan Agarwal, learned Counsel for the contesting respondent states that Section 6.4 of Electricity Supply Code, 2005 provides for payment of electricity dues in instalments, hence, he has no objection in accepting the amount in easy instalments.

Accordingly, this Court fixes four equal monthly instalments for the petitioner. The first instalment will become payable on 16th of June, 2019 and the rest three instalments will be paid by the petitioner on the 16th day of each succeeding month.

Insofar as the penalty, if any, is concerned, it is open to the petitioner to file an appeal before the appropriate authority.

In case, the petitioner deposits the amount in instalments as stated above, no coercive measures may be taken against the petitioner.

Failure to deposit any instalment within time as stated

above will leave it open to the respondents to proceed in accordance with law.

With the aforesaid observations, the writ petition stands disposed of. No costs.

Order Date :- 16.5.2019

S.P.